

Andhra Pradesh Rights in Land and Pattadar Pass Books (Amendment) Act, 2019

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State of Andhra Pradesh - Act

Andhra Pradesh Rights in Land and Pattadar Pass Books (Amendment) Act, 2019

ANDHRA PRADESH

India

Andhra Pradesh Rights in Land and Pattadar Pass Books (Amendment) Act, 2019

Act 8 of 2019

Published on 18 February 2019

Not commenced

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AN ACT FURTHER TO AMEND THE ANDHRA PRADESH RIGHTS IN LAND AND PATTADAR PASS BOOKS ACT, 1971.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Seventieth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Andhra Pradesh Rights in Land and Pattadar Pass Books (Amendment) Act, 2019.

(2)

It shall come into force on such date as the Government may, by notification, appoint.

2.

Amendment of Section 2.

In the Andhra Pradesh Rights in Land and Pattadar Pass Books Act, 1971 (herein after referred to as the Principal Act) in section 2,-

(i)

The existing clause (1) shall be renumbered as clause (1-f).

(ii)

Before the clause(1-f), as so renumbered,the following clauses shall be inserted, namely,

?(1). ?Bhudhaar? means the unique identification number assigned to any parcel of land, as contained in the Record of Rights, in such manner as may be prescribed;

(1-a). ?Bhudhaar Card? means a document prepared in such format as may be prescribed describing a parcel or parcels of land as contained in the Record of Rights, and specifying the Bhudhaar Number or Numbers assigned to such parcel or parcels, along with the stamp of date and time at which such card has been prepared, and, includes e-Bhudhaar Card and m-Bhudhaar Card;

(1-b). ?e-Bhudhaar Card? means a Bhudhaar Card which is generated and maintained in an electronic form;

(1-c). ?m-Bhudhaar Card? means a Bhudhaar Card which is generated and maintained in an electronic form and which can be downloaded and used on a mobile device;

(1-d). ?Permanent Bhudhaar? means a Bhudhaar Number assigned from a distinct series to indicate that the Geo-referencing of the parcel of land or lands appurtenant to the property has been completed;

(1-e). ?Temporary Bhudhaar? means a Bhudhaar Number assigned from a distinct series to indicate that the Geo-referencing of the parcel of land or lands appurtenant to the property has not been completed;?.

3.

Insertion of new section 3-A.

In the Principal Act, after section 3, the following new section shall be added, namely,-

3A.

Generation and updation of Bhudhaar.

Bhudhaar shall be generated automatically as per the updated record of Rights under Section 3(1), Section 5 and Section 5-A and shall be automatically updated electronically.

4.

Insertion of new sections 6-E and 6-F.

In the Principal Act, after section 6-D, the following new sections shall be added, namely,-

6E.

Assignment of Bhudhaar to parcels of land.

Every parcel of land to which the Act applies shall be assigned automatically a Bhudhaar, in such manner as may be prescribed:

Provided that the manner of the assigning permanent Bhudhaar defined under clause (1) shall take into consideration the geographical location of the parcel of the land, its shape determined by the coordinates of its corner points, ownership as per the Record of Rights.

Provided further that Bhudhaar Numbers both temporary and permanent from specially reserved series may be assigned to parcels of land belonging to Government, Central or State, Local Bodies, or Community, or land classified as Endowment or Wakf.

6F.

Generation of Bhudhaar Card.

(1)

Bhudhaar Cards both temporary and permanent shall be generated in respect of all the parcels of the land to which Bhudhaars

have been assigned and shall be made accessible online to the Pattadars or owners of such land, in such manner as may be prescribed.

(2)

. Single Bhudhaar Card shall be issued for all the parcels of land held by the same pattadar or Owner taking the village

as a unit for this purpose.

(3)

. The Bhudhaar Card, including e-Bhudhaar Card and m-Bhudhaar Card will have the same legal value and status as a Pattadar Pass Book-cum Title Deed would have in respect of such parcels of land, as at the time of its preparation.?

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